

ORDER SHEET
IN THE ISLAMABAD HIGH COURT,
ISLAMABAD.

JUDICIAL DEPARTMENT.

W.P. No.622-2021

M/s Universal Service Fund

Vs.

Federation of Pakistan etc .

S. No. of order/ proceedings	Date of order/ Proceedings	Order with signature of Judge and that of parties or counsel where necessary.
---	---	--

12.12.2022 Ch. Naeem Ul Haq, Advocate
for petitioner.

Syed Ishfaq Hussain Naqvi, Advocate for
respondents.

The petitioner has challenged notice
dated 18.02.2021, whereby demand was
made with respect to short payment of
advance tax.

2. At the very outset, learned counsel
for the petitioner contended that instant
petition has become infructuous inasmuch
as income tax return for the relevant year
has been furnished therefore the
respondents, if find that the estimation
made by the petitioner is erroneous, can
also seek to proceed under the relevant
provisions of law.
3. Learned counsel for the respondents
controverted the position.
4. As noted above, the petitioner had

questioned the notice for payment of advance tax by the respondents on the

2

W.P. No.622-2021

basis that the estimation is incorrect. It is trite law that the estimation made for payment of advance tax cannot be questioned by the tax authorities and it is only when the income tax returns are filed for that particular financial year, if the estimation is found erroneous, proceedings can be initiated under the provisions of Income Tax Ordinance, 2001; reference is made to judgment of this Court in case titled M/s Telenor Pakistan Pvt. Ltd. Vs.

Federation of Pakistan etc. (W.P. No.12242021).

5. In view of above, instant petition is disposed of as having become infructuous.

(CHIEF JUSTICE)

Zawar